



Contractor  
(Agreement for the Engagement  
and Provision of Services)

The Parties to the Agreement made this day 23<sup>rd</sup> June 2025 (the "Effective Date")

Agreement

In consideration of the payment of the Fees by DC to the Contractor, the Contractor shall provide the Services subject to the terms and conditions of the Agreement.

Between

DC: Delta Capita Ltd a company incorporated in England and Wales under Company Reg. No. 8957507 at the registered address of 40 Bank Street, Canary Wharf, London, E14 5NR ("DC")

And

The Contractor: Autonize IT Limited, a company incorporated at the registered address of: 78 Hunters Square, Dagenham, Greater London, RM10 8BG (the "Contractor")

Whereas:

- A. DC agrees to engage the Contractor and the Contractor agrees to provide the Services specified in the Schedule based on the terms and conditions of this Agreement.
- B. The Services are to be provided to a Client of DC but in the event that the Client is an intermediary for example, a consultancy or another recruitment agency or the like, the ultimate recipient of the Services may be an End User.
- C. The Contractor is providing the Services as an independent entity and on the basis that they are a company in business on their own account.

Notice

In signing this Agreement, it is deemed that both parties have read and understood the terms and conditions overleaf and agree to be bound by them in their entirety. In the event that the Agreement is not signed by one or either party both parties will be bound by the Agreement if acceptance of it can be inferred by conduct.

Signed for and on behalf of  
Delta Capita Ltd

Signed for and on behalf of  
Autonize IT Limited

DocuSigned by:  
  
909815F451FA44F...  
Signature

Signed by:  
  
2C24BC863B6B42B...  
Signature

Lily Lovegrove-Saville  
Head of HR UK

David Morrison  
Print Name

23-Jun-2025 | 13:43 BST  
Date

23-Jun-2025 | 07:22 PDT  
Date

Registered Office: Delta Capita Ltd | 2nd Floor | 40 Bank Street | Canary Wharf | London | E14 5NR Registered in England & Wales under Company Number 8957507

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TERMS AND CONDITIONS

IT IS AGREED as follows:

Definitions

For the purposes of this Agreement the following words and phrases shall have the following meanings:

- "Agreement"** shall include the following in order of precedence: (1) the Assignment Schedule; (2) an Addendum (where attached); (3) the Form of Agreement; (4) the Terms and Conditions.
- "Assignment"** means the period during which the Contractor provides the Services as set out in an Assignment Schedule.
- "Assignment Schedule"** means the schedule agreed between DC and the Contractor for each Assignment containing the particulars of the Assignment and Services.
- "Assignment Start Date"** means the date the Assignment commences.
- "Assignment End Date"** means the date the Assignment terminates unless the term is extended.
- "Client"** means the individual, company or organisation together with any subsidiary or associated company as defined by the Companies Act 2006 requiring the Services, and unless it is otherwise clear from the context includes any End User or third party who the Contractor is introduced to by the Client.
- "Consultant"** means an individual or employee, officer or representative of the Contractor who is supplied by the Contractor to provide the Services on behalf of the Contractor and may be substituted in accordance with Clause 6.2.
- "Contractor"** means the individual, company, partnership, or entity that contracts to provide the Services as named in the Agreement and unless otherwise clear from the context the expression "Contractor" shall also refer to and include the "Consultant".
- "Deemed Period"** means where the Contractor continues to provide or perform the Services or any other services for the Client beyond the Assignment End Date, the Agreement will be deemed to be extended for an additional period until such time as a further Agreement or Schedule or other documentation is signed between the Parties.
- "Effective Date"** means the date the Agreement commences unless the Agreement commences by earlier provision of the Services.
- "End User"** means the individual, company or entity who is the ultimate recipient of the Services provided by the Contractor and includes any subsidiaries, or third party who the Contractor is introduced to by the Client.
- "GDPR"** means General Data Protection Regulations
- "Introduction"** (and cognate expressions) means the submission to the Client by DC of a Contractor or Consultant's written or verbal details, or a Contractor or Consultant's attendance at interview (whether face to face or by telephone or otherwise), or the supply of a Contractor or Consultant to undertake any Assignments.
- "Off payroll"** means Chapter 10 – Part 2 of ITEPA 2003 it may also refer to Chapter 8 – Part 2 of ITEPA 2003 also known as IR35.
- "Services"** means any work, goods, services, advice, consultancy to be provided by the Contractor for the Client.
- "Work Records"** means a record of the time spent providing the Services.

1. General

- 1.1 DC is not regulated by the Conduct of Employment Agencies and Employment Businesses Regulations 2003 (the "Conduct Regulations ") as an employment business in this Agreement in accordance with the opt-out provision which has been agreed by the Contractor and the individual providing the Services.
- 1.2 The parties agree that it is not necessarily accepted that the Contractor or Consultant work or shall work for and under the control of the Client for the purposes of the Regulations or that the Regulations apply to the arrangements relating to the provision of the Services.
- 1.3 This Agreement constitutes the entire agreement between the parties and supersedes any previous agreement whether verbal, written or by conduct to which this matter refers. The Contractor warrants that, in agreeing to enter into this Agreement, it has not relied on any statement or representations made by DC or the Client.
- 1.4 Any variations or alterations to this Agreement in whole or in part will only be valid if they are expressed in writing and agreed and signed by both parties, with the exception of clause 3.6.
- 1.5 Where there is a conflict between these terms, a Schedule and/or an Addendum, where attached, the order of precedence shall be the Schedule, an Addendum, the Terms and Conditions.



- 1.6 Any references to Statute will include any amendments made to the relevant legislation from time to time.
- 1.7 The headings are for information only and shall not constitute any part of this Agreement.
- 1.8 The Definitions shall form part of this Agreement.

## **2. The Rights and Obligations of the Contractor**

- 2.1 The Contractor:
  - 2.1.1 warrants to DC that by entering into and performing its obligations under this Agreement neither the Contractor nor the Consultant will thereby be in breach of any obligation that is owed to any third party;
  - 2.1.2 shall procure that the Services shall be undertaken by the Consultant;
  - 2.1.3 shall be deemed to have accepted these terms and conditions if it performs any services for the Client or submits any Work Records to DC in relation to performing the Services for the Client;
  - 2.1.4 agrees to ensure that the Services shall be performed with a high degree of professional skill and care;
  - 2.1.5 agrees that the Services that it provides will be carried out in accordance with the specified targets for progress and deadlines which the Client reasonably requests; and
  - 2.1.6 confirms that, by signing this Agreement, it is aware that it could be a criminal offence for the Contractor to falsify any timesheet, for example by claiming that the Services were supplied for hours for which they were not in fact supplied;
  - 2.1.7 will ensure that all tools and other equipment which the Contractor utilises in connection with the Assignment are in good working order and that (without limitation) any such computer equipment and associated software are compliant and licensed and contain up-to-date and effective virus protections. Any corruption or loss of data caused by the actions or inactions of the Contractor must be rectified by the Contractor at its own cost; and
  - 2.1.8 warrants and represents that all statements whether oral or written, made by it and/or any Consultant regarding their experience, training, qualifications, and any other relevant information are true and accurate;
  - 2.1.9 has no authority to act or contract on behalf of DC or the Client, nor to hold itself out as capable of doing so and shall not, and shall procure that the Consultant shall not, purport to bind DC or the Client in any way.
  - 2.1.10 will contact DC as soon as reasonably possible on any day that it is unable to provide the Services for whatever reason.
- 2.2 The Contractor agrees to ensure that the Consultant:
  - 2.2.1 shall work in a professional manner and to a standard commensurate with the level of expertise that the Consultant has, and the Client requires and shall work such hours as are reasonably necessary to perform the Services;
  - 2.2.2 has the suitable qualifications, skills, experience or training or any other authorisation which the Client considers are necessary or which are required by law or any professional body and can provide evidence of such upon request and does not have a criminal record;
  - 2.2.3 does not discuss the rate of pay or any other remuneration which the Contractor receives from DC as a result of the work undertaken pursuant to this agreement with any of the Client's employees or other individuals who provide services to the Client;
  - 2.2.4 is made aware of the terms and conditions of this Agreement and agrees to abide by them and where necessary sign a document to this effect and return it to DC when requested to do so;
  - 2.2.5 will act in accordance with any rules and regulations which not to do so would be a breach of health and safety legislation, any security measures of the Client or any other applicable laws, statutes, or regulations;
  - 2.2.6 conducts themselves in a manner which shall not be detrimental to the reputation of the Client or DC which may result in financial loss or damage to the Client or DC;
  - 2.2.7 shall not be under the influence of drugs or alcohol whilst carrying out the services for the Client;
  - 2.2.8 shall not wilfully or negligently introduce a virus or other harmful code to the Client's hardware or software and shall indemnify DC against any damage caused as a result of such actions or inactions;
  - 2.2.9 shall sign any undertakings of confidentiality, formal assignment of intellectual property rights or other such agreement which the Client may reasonably require to be signed;
  - 2.2.10 has the appropriate insurance for business use of a personal car whilst providing the Services; and
  - 2.2.11 has:
    - (a) the legal right to work in the United Kingdom (or any other country where the work for the purposes of performing the Services is carried out, as applicable) and shall upon request provide evidence in accordance with the regulations of the Immigration, Asylum and Nationality Act 2006 or other legislation applicable to the relevant country where the work is carried out;
    - (b) fulfilled the verification of background information (to the extent that any such checks are permitted by applicable laws by the country where the Services are performed) to DC's satisfaction, including investigative reports and references from employers, and any relevant academic and professional bodies;



(c) no court order or express or implied terms of any contract or other obligation binding on him that would be breached by him performing any Services.

In accordance with these obligations the Contractor shall indemnify DC against a breach of this clause 2.2.11.

- 2.3 Whilst the method of work shall be that of the Contractor, the Contractor shall comply with all reasonable requests by the Client to abide by the procedural and quality standards.
- 2.4 The Contractor is operating as a limited company and will supply its services under a contract for services using Consultants of the Contractor company. The Contractor further warrants that they are in business on their own account.
- 2.5 At no time will the Contractor or any Consultant of the Contractor company be deemed to be an employee, agent or representative of DC or any Client to whom the services are hired. Specifically, it is the intention of the parties to have a non-employee/employer relationship.
- 2.6 If the Client requires services which have not been included within the Assignment, the commencement of such services will only be undertaken under this agreement where the services relate to the Assignment undertaken and are with the consent of the Contractor and DC.
- 2.7 The Contractor shall and shall ensure that the Consultant shall notify DC within 7 (seven) days in writing of any circumstances affecting the legal status of the Contractor or the Consultant.
- 2.8 In the event of a dispute, the Contractor shall notify DC in writing within 7 (seven) days of the event occurring detailing the manner of the complaint. DC will make all reasonable efforts to settle the dispute in a timely manner. In any event, the Contractor has 1 year from the date of loss or potential loss to bring a claim subject to a long stop of two years from the cause of action accruing. This exclusion does not apply to any liability which cannot be excluded under the law of England and Wales.
- 2.9 All defects, deficiencies, or under-performance of the Services, which are in the reasonable opinion of the Client or DC directly attributable to the Contractor, shall be remedied by the Contractor who shall bear all the costs of such remedy.
- 2.10 In the event that DC is involved in any legal proceedings as a result of this Agreement, the Contractor will co-operate to the fullest extent especially with the provision of any relevant documents or materials and that access to any relevant witnesses shall not be impeded. The Contractor shall join with DC in any legal proceedings and indemnify them accordingly.
- 2.11 The Contractor warrants that it will not at any time:
- 2.11.1 supply its services through a Managed Service Company within the meaning of s.61B Income Tax (Earnings and Pensions) Act 2003 and shall indemnify DC for non-compliance with the relevant legislation;
- 2.11.2 use a tax scheme or the like that is not proven to be legitimate and fully compliant with the requirements of the tax authority of the relevant country where tax is to be paid.
- 2.12 *Off Payroll (IR35)*
- 2.12.1 The Contractor warrants that they will comply with the legislation in Chapter 10 Part 2 ITEPA 2003 specifically, section 61U – Information to be provided by the worker.
- 2.12.2 In the event that the information in s.61U is not provided the Contractor acknowledges and agrees that DC is obliged to make the deemed direct payment and the appropriate deductions for tax and national insurance.
- 2.12.3 If in making the determination for the Status Determination Statement (SDS) the Client or DC requires information from the Contractor, the Contractor warrants that it will provide true and accurate information within 7 days of receiving the request. If the information provided is deemed to be fraudulent, the Contractor will become liable for any deductions as the deemed employer.
- 2.12.4 In the event that the Client makes a determination that the legislation in Chapter 10 applies ('inside IR35'), the Contractor acknowledges and agrees that DC is obliged to make the deemed direct payment and the appropriate deductions for tax and national insurance.
- 2.12.5 Where the Client has issued a SDS to the Contractor, the Contractor shall immediately or within 48 hours provide a copy of the SDS to DC.
- 2.12.6 Where the off-payroll legislation does not apply and/or Chapter 8 ITEPA 2003 (IR35) does apply, the Contractor warrants that they will take reasonable care to assess their employment status and provide a determination with reasoning to DC before the contract begins.
- 3. The Rights and Obligations of DC**
- 3.1 The Contractor will be contracted to DC under a contract for services. There will be no direct contract express or implied between the Client and the Contractor and the Agreement is not intended to give rise to or constitute a contract of service or an employment contract.
- 3.2 Neither the Contractor nor the Consultant shall be entitled to receive any holiday pay, sick pay, long service or annual leave or any other similar entitlement from DC or the Client.
- 3.3 DC is not responsible for ensuring that the Consultant is paid for the work completed, this is the responsibility of the Contractor.
- 3.4 Where the Contractor leaves the Assignment prior to the date of completion without notice or authority, DC shall be entitled to make a claim to recoup any losses sustained, including legal costs, as a result of the Contractor's actions or conduct.

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# Delta Capita

- 3.5 Where there is a dispute, an overpayment of Fees or for any other reason that a sum of money is recoverable from or payable by the Contractor, DC shall be entitled to withhold such sums from the Fees which might otherwise be due. In respect of this DC shall be entitled to satisfy such sums by way of set-off.
- 3.6 DC reserves the right to vary the terms of this agreement by incorporating an addendum of obligations imposed by the Client in the event that the Client contract is received after this agreement has been signed.
- 3.7 DC reserves the right to require the Contractor to take Time Off from the contract where the needs of the business require, or the Client requests it. The Time Off is a period of short duration where it is expected that the contractor will re-commence the Services.

## 4. Payment Terms

- 4.1 The Contractor agrees to provide:
- 4.1.1 a record of the number of hours or days either in which the Services have been provided to the Client or where the Services have not been provided but the Client requires a record to be submitted. The record to be evidenced in writing in DC's required format; and
- 4.1.2 the records to have been verified and signed by the Client or an authorised representative of the Client; and
- 4.1.3 the records and a valid invoice for the time spent servicing the Assignment calculated at the Fee Rate stated in the Schedule to be sent to DC in accordance with that stated in the Assignment Schedule failure to do so may result in non-payment.
- 4.2 DC shall not be obliged to pay any Fees to the Contractor (i) unless an invoice has been properly submitted by the Contractor; (ii) unless the clause 4.1.2 has been complied with; and (iii) the hours claimed are true and accurate; and
- 4.3 that such invoices shall specify the registration number for HMRC Value Added Tax where applicable or the equivalent where the Consultant is providing Services in a country where the levy of an equivalent charge is legally required before payment of the Fees. This clause shall not apply where a Consultant is providing Services in a country which is not subject to a Value Added Tax charge or its equivalent.
- 4.4 If the Contractor has not submitted an invoice within 6 (Six) months of the end of the month in which the services were provided, DC shall not be obliged to make any payment.
- 4.5 Subject to clause 4.2, the Contractor will receive payment from DC within the time specified in the Payment Term in the Assignment Schedule.
- 4.6 Charges on the invoice are to be shown exclusive of VAT which, if applicable, are to be included as a separate item and charged at the rate prevailing at the time.
- 4.7 Payments will be made by BACS to the Contractor's designated bank account in GB Sterling unless the parties agree otherwise.
- 4.8 The Client shall reimburse direct to the Contractor all expenses, travel, subsistence, and accommodation that have been agreed with the Client unless agreed otherwise and evidenced in writing. For the avoidance of doubt, the Contractor will not be able to claim expenses from DC.
- 4.9 *Assignment Term*
- 4.9.1 DC's only liability for the payment of Fees are for those Fees received from the Client.
- 4.9.2 In the event that the Assignment or any Continuation of the Assignment does not begin on the Assignment Start Date for any reason, DC shall not be liable for any payments for the period of time up to the actual start date or if the Assignment is cancelled.
- 4.9.3 Upon termination of this Agreement for any reason, DC's only liability to the Contractor shall be for Services performed up to the date of the termination. In the event of a dispute or where the Contractor leaves the Assignment prior to the date of completion, DC is not responsible for any outstanding payments not received from the Client.

## 5. Term and Termination

- 5.1 This Agreement shall commence from the Effective Date or if undated or unsigned shall be deemed accepted if the Contractor performs any services for the Client or submits a Work Record to DC in relation to performing services for the Client.
- 5.2 Subject to clause 5.3 below, the Agreement shall terminate on the Assignment End Date unless terminated earlier under the provisions in this Agreement or extended by agreement between the parties. Where no Assignment End Date is provided the Agreement shall continue in force for so long as the Services are provided or for 3 (three) months after the last date of supply of the Services.
- 5.3 If the Contractor continues to provide or perform the Services or any other services for the Client beyond the Assignment End Date, then this Agreement will be deemed to be extended for an additional period until such time as a further Agreement or Schedule or other documentation is signed between the Parties (the "Deemed Period");
- 5.3.1 the terms and conditions of the Agreement shall be deemed to apply during the Deemed Period, except that DC may terminate the Deemed Period at the request of the Client immediately and without any Notice Periods applying.



- 5.4 DC may terminate the Agreement by notice with immediate effect and without liability in the event that:
  - 5.4.1 the Contractor commits a fundamental breach of the Agreement which is in the opinion of DC or the Client incapable of remedy;
  - 5.4.2 the Contractor is in breach of its obligations under the Agreement and fails or is unable to remedy such breach at the Contractor's expense within 7 (seven) days after having received notice in writing to do so;
  - 5.4.3 the Consultant in the opinion of the Client or DC is guilty of incompetence, inappropriate conduct, serious or persistent negligence in provision of the Services or fails or refuses to provide the Services in a professional manner;
  - 5.4.4 the Consultant proves unsatisfactory for any reason;
  - 5.4.5 the Services have not been provided to the Client in accordance with the contract for a period of more than 5 (five) working days other than those days mutually agreed upon;
  - 5.4.6 the Contractor or the Client goes into insolvent liquidation or makes a voluntary arrangement with its creditors or has a receiver or administrator appointed or is subject to a winding-up order;
  - 5.4.7 DC receives any information regarding the unsuitability of the Contractor or the Consultant to provide the Services; or
  - 5.4.8 the Client Agreement is terminated, cancelled, or suspended.
- 5.5 DC have the right to suspend the contract:
  - 5.5.1 in the event that the payment from the Client has not been received by DC 7 (seven) days after the due date for payment; or
  - 5.5.2 immediately if DC reasonably believe that payment is not going to be received on the due date for payment.
- 5.6 This Agreement may be terminated by DC without cause by giving the Notice Period from DC to Contractor as set out in the Assignment Schedule. For the avoidance of doubt, termination pursuant to clause 5.4 shall take precedence over termination in this clause and any Notice Periods.
- 5.7 The Contractor may terminate the Agreement by notice with immediate effect and without liability in the event that:
  - 5.7.1 DC commits a fundamental breach of the Agreement which is, in the opinion of the Contractor, incapable of remedy;
  - 5.7.2 DC is in breach of its obligations under the Agreement and fails or is unable to remedy such breach at the expense of DC within 7 (seven) days after having received notice in writing to do so;
  - 5.7.3 DC goes into insolvent liquidation or makes a voluntary arrangement with its creditors or has a receiver or administrator appointed or is subject to a winding-up order.
- 5.8 This Agreement may be terminated by the Contractor without cause by giving the Notice Period in writing from Contractor to DC as set out in the Assignment Schedule. For the avoidance of doubt, if there is no Notice Period in the Assignment Schedule, the Contractor is not entitled to give notice on the contract.
- 5.9 Any termination shall be without prejudice to any rights or remedies which have accrued up to the date of termination or which shall accrue thereafter.
- 6. Assignment and Substitution**
  - 6.1 This Agreement may not be assigned in whole or in part without the consent of both parties.
  - 6.2 The Contractor may substitute the Consultant with another provided that the Client and DC are satisfied that the proposed substitute possesses the skills, expertise, and knowledge necessary to perform the Services and that the proposed substitute consents in writing to abide by the terms and conditions of this Agreement. For the avoidance of doubt, the substitute will be paid by the Contractor.
  - 6.3 The cost of any specific training of the substitute needed in order to perform the Services will be at the expense of the Contractor.
- 7. Mutuality**
  - 7.1 Neither DC nor the Client is under any obligation to offer work to the Contractor and the Contractor is under no obligation to accept any work that may be offered. Neither party wishes to create or imply any mutuality of obligation between themselves either in the course of or between any performance of the Services or during any Notice Period. DC is not obliged to pay the Contractor at any time when no work is available during the term of this Agreement.
- 8. Covenant**
  - 8.1 The Contractor shall not and shall procure that the Consultant shall not, whether directly or indirectly through any company, partnership, or person either from Introduction to the Client or

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End User, during the term of the Agreement or within 6 (six) months of the termination of the Agreement and any extensions or during the Deemed Period, for the same or similar services as provided by the Contractor:

- 8.1.1 enter into any arrangement or agreement which would result in either the employment of the Contractor or the Consultant by, or the provision of the Services of the Contractor or the Consultant to, the Client or any third party introduced to the Contractor or the Consultant by the Client or, the End User, other than through DC; or
- 8.1.2 introduce any other person to the Client or any third party introduced to the Contractor or the Consultant by the Client or, the End User with a view to that person being employed or providing services, other than through DC; or
- 8.1.3 engage or employ or otherwise solicit for employment or contract work any person who, during that period, was an employee, or a subcontractor, or an employee of a subcontractor of DC or the Client any third party introduced to the Contractor or the Consultant by the Client or the End User;
- 8.1.4 without DC's written consent, such consent may be withheld at DC's sole discretion or granted subject to any conditions DC may wish to impose including reserving the right to claim any losses it sustains including reasonable legal costs direct from the Contractor or Consultant.
- 8.2 It is agreed by the parties that this clause is fair and reasonable and necessary to protect the legitimate business interests of DC.
- 8.3 Each sub-clause of this clause constitutes an entirely separate and independent restriction on the Contractor or Consultant. Where any sub-clause of this clause is held void or unlawful or unenforceable in any respect then such sub-clause shall be severed from this Agreement without prejudice to the validity or enforcement of the other subclauses of this Agreement.
- 8.4 This clause shall remain in force beyond cessation or termination of this Agreement.

## **9. Confidentiality**

- 9.1 The Contractor shall ensure that at any time before or during the term of the Agreement or after the termination of the Agreement they shall not divulge or disclose to any third party or make use of any confidential information or trade secrets relating to or belonging to the Client or DC this includes and is not limited to any information which the Contractor has been told is confidential or which might reasonably be expected to be confidential.
- 9.2 The Contractor shall and shall ensure that the Consultant shall sign any confidentiality agreement or other such agreement that it is reasonable for the Client or End User to request.
- 9.3 The Contractor shall ensure that the Consultant is required to comply with obligations of confidentiality no less onerous than those in this clause above.
- 9.4 The undertakings shall not apply to Confidential Information which:
  - 9.4.1 at the time of its disclosure is in the public domain;
  - 9.4.2 after disclosure comes into the public domain for any reason except the failure of the individual, company, organisation, or legal entity or any of its officers, employees or sub-contractors (hereinafter known as the "Recipient") to comply with the terms of this clause;
  - 9.4.3 was lawfully in the Recipient's possession prior to such disclosure;
  - 9.4.4 the Recipient is required to disclose, retain, or maintain by law or any regulatory or government authority.

## **10. Intellectual Property Rights**

- 10.1 The Client shall retain ownership of all intellectual property rights of whatever nature in any documents or other material, data or information provided to the Contractor in the context of this Agreement.
- 10.2 The Contractor agrees that all intellectual property rights written, made or discovered by it whether registrable or otherwise in the performance of the Services shall be vested in the Client and on termination of the Agreement all such intellectual property rights shall be delivered up to the Client.
- 10.3 The Contractor warrants that the Services provided are not in breach of the intellectual property rights of any third party and shall indemnify the Client and DC against all and any actions, claims, costs, expenses, damages, demands and liabilities whatsoever resulting or arising out of any claim by any third party that the use or possession of work performed or delivered by the Contractor in connection with this Agreement infringes the intellectual property rights of that third party.
- 10.4 The Contractor hereby irrevocably and unconditionally waives in favour of the Client any and all moral rights conferred on it by statute for any intellectual property, design or copyright work in which rights are or should be vested in the Client pursuant to this clause.

## **11. Data Protection (GDPR)**

- 11.1 By signing this Agreement, the Contractor understands and consents to DC processing, holding, storing or otherwise using their personal data including special category data (as defined in the GDPR) for recruitment, administration and other operational purposes including complying with

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- any reporting requirements of HMRC which may involve passing the data to a third party agency who is required to report to HMRC.
- 11.2 The Contractor understands that in providing the Services, personal data relating to the Contractor will be processed by:
- 11.2.1 the Client in the course of the Client's administration of the Agreement between DC and the Client. The Contractor understands that in providing the Services the Client, or anyone processing data on behalf of the Client, may transfer personal data relating to the Contractor outside the European Economic Area. By signing this agreement, the Contractor expressly consents to such processing including any transfer on the understanding that any personal data is processed fairly and lawfully in accordance with the Data Protection Act;
- 11.2.2 HMRC as a result of DC complying with the reporting requirements or any other obligations placed on it by the relevant authority.
- 11.3 Both Parties agree to comply with the provisions and principles of the Data Protection Act currently in force.
- 11.4 Where the Contractor is found not to have complied with the requirements of the Act, the Contractor will indemnify DC against any loss or claim by a third party.

## **12. Indemnity and Insurance**

- 12.1 The Contractor shall be liable for any and all loss, expenses, damages, injuries or costs including reasonable legal costs caused to either DC or the Client arising directly or indirectly from the acts or omissions whether negligent or otherwise of any of its Consultants, officers, representatives, employees or sub-contractors and shall indemnify DC and the Client accordingly.
- 12.2 DC shall not be liable to the Contractor, whether in contract, under statute, tort (including negligence) or otherwise, for any loss of use, loss of profits, loss of revenue, loss of contracts or direct or indirect or consequential loss or damage arising which is suffered or incurred by the Contractor and which is directly or indirectly connected with this Agreement.
- 12.3 Where the Contractor is in breach of this Agreement which results in the Client terminating the Agreement between DC and the Client or the Services provided by the Contractor, the Contractor shall without prejudice to any other remedy of DC, indemnify DC against any losses DC sustains relating to the provision of the Services.
- 12.4 The Contractor shall and shall ensure that the Consultant shall be responsible for and keep DC and the Client indemnified against any liabilities, fines, penalties, or interest:
- 12.4.1 arising from all tax and national insurance contributions and any other taxes or deductions payable in respect of the Services provided under this Agreement; and
- 12.4.2 in respect of any claim made under any employment related legislation by the Consultant or an individual providing the Services, this clause specifically includes but is not limited to a claim made under the Agency Workers Regulations 2010.
- 12.4.3 for the avoidance of doubt, the Consultant shall be personally liable under clause 12.4 and the Contractor shall ensure that the Consultant gives a personal guarantee in favour of DC or in any case shall ensure that DC can recover any dues from the Consultant personally, which maybe by way of set-off in Clause 3.5 or direct action against the Consultant.
- 12.5 The Contractor shall and shall ensure that the Consultant shall be covered by:
- 12.5.1 Professional Indemnity insurance;
- 12.5.2 Tax defence costs and tax loss insurance, where requested, the insurance shall have an endorsement to cover the Fee-payer from any liability, whether it be DC or the Client;
- 12.5.3 Any insurance must be from a reputable insurer showing the minimum required level of cover as detailed in the Assignment Schedule. The Contractor must ensure that DC is indemnified for all claims under the insurance for the length of cover shown in the Assignment Schedule.
- 12.6 The Contractor shall provide a valid insurance certificate for:
- 12.6.1 Public Liability insurance at a commercially acceptable level; and
- 12.6.2 Employer's Liability insurance, where applicable, at a commercially acceptable level;
- 12.6.3 Class 1 Business Use car insurance for each Consultant.
- 12.7 A copy of any insurance policy in 12.5 or 12.6 must be made available to DC when requested and provided within 5 working days.

## **13. Severability**

- 13.1 If any term or condition of this Agreement should be held by a court to be wholly or partially invalid, void, or unenforceable for any reason that part of the Agreement shall not serve to affect any other provisions in the Agreement and all provisions not affected shall remain effective and in full force.

## **14. Waiver**

|              |                        |                          |             |
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- 14.1

The failure to exercise or enforce any right conferred by this Agreement does not constitute a waiver of that right nor does it operate to bar the exercise or enforcement of that right at a future date.
15.

**Force Majeure**
- 15.1

Each party shall be released from their respective obligations and shall not be liable to the other or be deemed to be in breach of the Agreement by reason of any delay in performing or any failure to perform any of their obligations under the Agreement if the delay was due to the occurrence of an event beyond the relevant parties’ reasonable control, including without limitation labour disputes involving that party. The party affected by such circumstances shall promptly notify the other party in writing as soon as is reasonably practicable detailing the cause of such failure or delay and specifying the date of commencement and likely cessation, if known, of the same.
16.

**Rights of Third Parties**
- 16.1

Both parties agree that these terms shall not be enforceable by a third party by virtue of the Contracts (Rights of Third Parties) Act 1999 and this Agreement can be rescinded or varied by agreement between the parties without the consent of any such third party. For the purposes of this clause a third party means any person who is not party to this Agreement.
17.

**Notices**
- 17.1

Any notice which is required to be given under this Agreement shall be given by pre-paid first-class post, email or fax to the contact details specified in the Agreement or as otherwise notified from time to time to the sender by the recipient for the purposes of this Agreement or to an address that is regularly used to communicate with the other Party.
- 17.2

Notices shall be deemed to have been given and served:
- 17.3

If sent by facsimile or e-mail, at the time of despatch if despatched on a business day before 5.00 p.m. or in any other case at 10.00 a.m. on the next business day after the day of despatch, unless the transmission report indicates a faulty or incomplete transmission or, within the relevant business day, the recipient informs the sender that the facsimile or e-mail message was received in an incomplete or illegible form; or
- 17.4

If sent by prepaid first-class post, 48 hours from the time of posting.
18.

**Law and Jurisdiction**
- 18.1

This Agreement is governed by English Law and the parties hereby submit to the exclusive jurisdiction of the English Courts.